
A Judge Officially Confirmed What Everyone Knew About Todd Blanche and Donald Trump

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It's shaping up to be a rough week for acting Attorney General Todd Blanche. Just as he awaits [a sure-to-be-contentious confirmation hearing](#) in his quest to secure the top job at the Justice Department, a federal judge has released a scathing assessment of his work on the president's suit against the IRS. It details Blanche's blatantly unlawful conflict of interest when he brokered a "settlement" with President Donald Trump; the arrangement, which irked even the most MAGA Republicans, sought to establish a nearly \$1.8 billion "anti-weaponization" fund to pay out the president's supporters. The deal also [included an agreement](#) that bans the IRS from ever auditing Trump, his sons Donald Trump Jr. and Eric Trump, and the Trump Organization over past tax returns. The judge's conclusion confirmed what we've all been thinking: The acting AG and the president's interests in this case were "one and the same."

"Indeed, the DOJ seems to have purposefully adopted the strategy of creating a 'slush fund disguised as a settlement, and then doling the money out to whatever constituency the Executive wants bankrolled,'" U.S. District Judge Kathleen M. Williams wrote [in an order](#), released on Monday, breaking down the culmination of [Trump's lawsuit](#) against the IRS. Filed in January—a few months before the statute of limitations—the president sought \$10 billion from the U.S. government over the agency's leak of his tax returns by a former federal contractor back in 2020. Williams found that Blanche had used weak legal arguments that allowed unprecedented deference to Trump, when, in prior lawsuits related to this same IRS leak, the federal government had "zealously" defended its actions, denying that it could be held liable because of the contractor. When it came to Trump, however, suddenly the Department of Justice was singing a different tune.

By May, less than six months after Trump had filed his lawsuit, Blanche was submitting a voluntary dismissal with prejudice to Williams, essentially moving the case out of her jurisdiction. Hours later, a tranche of headlines announced that the two parties had reached [a settlement agreement](#). Trump agreed to drop the suit in exchange for the federal government's establishing a \$1.8 billion anti-weaponization fund, paid for through the Treasury Department, to anyone who alleges that the Biden administration "weaponized" the legal system against them—aka Jan. 6 rioters—plus IRS-audit immunity for the Trump family and business over past tax returns. And when Blanche was called to Congress to testify about this, he claimed he had not shared the settlement agreement with Williams because "there is no judge" now that the case had been dismissed, and therefore there was "no mechanism" for reviewing the agreement. Days later, Williams decided to reopen the case.

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In her order, she responded to Blanche's testimony by clarifying that a dismissal does not "deprive the court of authority to resolve issues collateral to the merits." Moreover, she stated, Blanche should never have been representing the federal government in this case, particularly given the settlement agreement's anti-weaponization fund. It's intended for people prosecuted by the Biden administration for participating in the Jan. 6 insurrection, an event that resulted in a criminal indictment against Trump too. And guess who represented the president in that case? (Hint: It was Blanche.)

The biggest takeaway from Williams' order is her conclusion that "Plaintiffs do in fact control Defendant ... and that no case or controversy exists between Plaintiffs and [Defendant], necessitating Defendant's dismissal from the present case." The smoking gun here is Trump's [executive order](#) "Ensuring Accountability for All Agencies," which he signed last year. It includes a section that explicitly addresses the president's ability to direct the federal government's conduct in litigation. "The President and the Attorney General, *subject to the president's supervision and control*, shall provide authoritative interpretations of law for the executive branch." This, Williams says, proves Trump's "intent to wield actual, comprehensive control over Defendants in this matter." No matter how legitimate or well reasoned Blanche's arguments could have been in this case, they have lost their validity due to the way Trump has defined his relationship with federal agencies.

Just two weeks ago, the Supreme Court essentially greenlit Trump's complete takeover of all executive agencies, including previously independent ones, in [Trump v. Slaughter](#), allowing presidents to remove subordinates at will because "then, and only then, can they remain accountable to the President, and the President to the people." This decision, hailed as a massive win for the White House, has come back to bite the president; Williams pointed out that in this IRS case, the administration conveniently argues the opposite, that the federal agencies Trump now controls but is attempting to sue can still be "sufficiently adverse to establish an actual case or controversy."

At the end of the day, the DOJ's responsibility is to zealously represent the interests of the U.S., not the president, and Blanche has violated the agency's commitment to remain insulated from political influence. "There is 'an expectation that even the Attorney General must be able to draw the line between political allegiance and fidelity to the people, as well as the fair administration of law,' " Williams wrote.

The judge concluded her order by demanding “monetary sanctions” against Trump and requiring that the opinion be sent to the State Bar of New York and the District of Columbia for potential disciplinary proceedings. Meanwhile, what does this mean for Blanche’s confirmation for the AG job? It’s hard to say, but Williams’ order, coming days before Blanche is set to testify in front of the Senate Judiciary Committee, seems to confirm the [concerns even some Republicans have about Blanche’s](#) willingness to actually be the people’s lawyer, not the president’s.

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